



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

September 30, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 16121
(THIRD REVISION)

EXPIRATION DATE: 2028-09-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Department of Defense (Military Surface
Deployment & Distribution Command)
Scott AFB, IL
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain composite fiberglass wrapped stainless steel high-pressure cylinders containing compressed argon. This special permit provides no relief from the Hazardous Materials Regulations (HMR), the International Civil Aviation Organization's Technical Instructions (ICAO TI), or the International Maritime Dangerous Goods Code (IMDG) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This special permit serves as an "Approval" under Part 6, Chapter 5, Paragraph 5.1.1.2 of the ICAO TI and Part 6, Chapter 6.2 paragraph 6.2.1.1.2 of the IMDG Code, and as a "Competent Authority Approval" as defined under 49 CFR § 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180, and ICAO TI, and IMDG Code.

Tracking Number: 2024055387

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 171.23(a) and § 173.302(a)(1) in that non-DOT specification packaging is not authorized, except as provided herein.
5. BASIS: This special permit is based on the application of the Department of Defense (Military Surface Deployment & Distribution Command) dated May 30, 2024, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Argon, compressed	2.2	UN1006	N/A

7. SAFETY CONTROL MEASURES:
- a. PACKAGING: The prescribed packaging is a non-DOT specification composite fiberglass wrapped stainless steel high-pressure cylinder manufactured in accordance with U.S. Army Aviation and Missile Command, Drawing Numbers 481-200572 or 481-200360, tested up to a minimum of 20,250 psig burst pressure and meeting the qualification and acceptance tests required by MIL-STD-1522A. The maximum operating pressure of the cylinder is 6,950 psig.
- b. OPERATIONAL CONTROLS:
- (1) Each cylinder must be transported securely packed in outer wooden box in accordance with the Department of Defense (DOD) Special Packaging Instruction AL14515825.
- (2) The item(s) allowed under this special permit are authorized for transportation only when transported by, or under the direction or supervision of, the DOD.
- c. REQUALIFICATION: Each cylinder must be requalified by the hydrostatic proof pressure test every 5 years. The test pressure must be 10,700 psig +/- 200 psig and held for 3 minutes without leakage, deformation, or visual anomalies.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit, the HMR, the ICAO TI, and the IMDG Code.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of countries of origin, transit, and destination.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, passenger-carrying aircraft, and cargo aircraft.10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, aircraft, and motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005),

amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: KH